TERMS & CONDITIONS

1. Acceptance.
   a. The order will be binding upon the supplier when received and accepted by supplier. If confirmation is not received within 7 days, it is deemed that the order has been accepted.
   b. Please quote our purchase order number, item code, party code on all documents and correspondence to be exchanged.
2. Identification.
   a. The **PO No & ITEM CODE** must appear on all invoices, packing slips, cartons & correspondence.
3. Documents.
   a. The original bill should be sent in the envelope addressed in the name of "Manager (accounts)" and the other copies of the bills / original challans be sent to stores dept. along with the material.
   b. One Scanned Copy of Original invoice to be upload on Vendor Portal i.e.: www.portal.glosent.in/supplier
   c. Supplies should be accompanied by Tax Invoice bearing the reference of the purchase order.
4. Quantity.
   a. Where the nature of material ordered is such that certain normal excess/short is likely to occur, excess/short supply will be acceptable up to maximum extent of 10% of the ordered quantity. Supply in excess of permissible limit shall not be accepted and it shall be returned at the supplier's cost and risk unless prior permission in writing has been obtained by supplier from the Company.
5. Weight.
   a. Unless otherwise stipulated, weight recorded at Company's designated place of business shall be deemed as final.
6. Delivery.
   a. Goods against order must be delivered at Company's designated place of business by the date stipulated therein.
   b. "If the transport is in the scope of the vendor, the vehicle should have all necessary statutory clearances and permits like insurance, PUC, Driving License etc else the same will not be allowed to enter our premises".
7. Transit Insurance.
   a. Shall be arranged by Purchaser (if required). The supplier is requested to inform dispatch particulars i.e., item, quantity, no of boxes, LR No & date, insurable value etc, telegraphically or over mail immediately the goods are dispatched for covering transit insurance against our policy.
8. Terms of Payment.
   a. Unless otherwise stipulated payment will be made within 90 days or such other longer period as may be agreed to from the date of receipt of goods and bills in duplicated complete in all respect, bearing the reference to the order, your challan reference and accompanies by requisite documents. However, no interest will be payable by us on overdue account. Dispatch documents must reach us in time to take delivery of the goods free of damage and any such charges if incurred shall be to your account.
9. Material Acceptance & Rejection.
   a. All goods accepted are subject to final approval of the company's works and inspection regarding quality, quantity and specifications. The company reserves the right to reject if further defects are noticed by the assembling or processing, even if in the first instance the goods have been accepted by the company and are paid for. Company's decision about such rejections, owing to inherent defect(s) in the supplied goods/ services, at whatever time, shall be final and binding upon the supplier and supplier shall not object to it in any manner whatsoever. If, all packing, freight and holding costs or any other cost of such rejected material shall be borne by the supplier.
   b. Supplier shall replace the rejected material within 7 days' time from the date of receipt of company's report of rejection of the place of supply. Goods supplied shall be according to sample previously approved by the company.
   c. The company shall be entitled to reject the goods which in their opinion are not according to the drawing / sample. No payment shall be made for such rejected goods.
   d. Company reserves the right to cancel or amend this order or any part thereof for the following reasons:
      I. Irregularities in the supply.
      II. Rejections.
      III. Escalations in the prices.
      IV. Item(s) no more required by the company, without assigning any reason and without in any manner incurring any liability. The company's decision shall be final.
      V. The company also reserved the right that Money due to the company, either as damages or under any other previous orders may be adjusted when settling payment against this order.
10. Drawings / Documents for Approval.
    a. You shall submit the drawings & supporting documents for approval in soft copy / hard copies within 2 days.
    b. You shall submit Bill of Material (BOM) for procurement of items under GLOSENT scope, if any, within 7 days from the date of P.O.
    c. You shall provide us the total BOM for your scope of supply for our reference and review within 7 days from the date of P.O.
    d. You shall submit us the billing schedule before commencement of dispatches.
11. Engineering Documents / Test Certificates.
    a. The supplier shall supply four copies each of drawing, where applicable, Operational & Maintenance manual, parts catalogue and list of recommended parts if any. The supplier shall furnish necessary Test / Performance Certificates, if any conforming to the relevant Indian / International standard (s).
    b. You shall provide As-Built drawings and final documents in re-writable CD with text in MS Word and Drawings in AutoCAD along with the final consignment.
12. Progress Report.
    a. You shall submit a Bar chart along with major milestones with their completion dates within 7 days of receipt of PO. You shall submit Progress Report Weekly.
13. Dispatch Instruction.

a. The Packing List has to be submitted in three copies, duly verified and ticked by you, before dispatch, as under.
   i. One advance copy to be sent to us as soon as the material is dispatched.
   ii. One copy to be kept inside the packing box.
   iii. One copy to be attached to the Tax Invoice accompanying the material/transport.
b. All dispatches to be addressed to Manager (Stores) GLOSENT.
c. You shall dispatch the material on door-delivery basis. No transhipment is permit.

14. **Inspection Clause.**
    a. You shall submit detailed Quality Assurance Plan (QAP) immediately on receipt of this order for our approval. Based on the manufacturer's Bar chart and the QAP, GLOSENT shall decide about the stages and the mode of inspection Stage/pre-Shipment Inspection shall be carried out by us for which you shall give us at least one-week advance intimation. The Inspection Call must be followed by your Internal Inspection Reports
    b. The inspection may be carried out by GLOSENT / third party/ both GLOSENT & third party.
15. **Guarantee/ Warranty.**
    a. You shall guarantee to repair / replace free of cost any equipment or components supplied by you if found defective due to design/workmanship within 18 months from supply or 12 months from erection and commissioning of the equipment, whichever is earlier.
    b. Supplier shall warrant that all goods delivered here under are of recent manufacturing date and are free from all defects in material or workmanship and to confirm strictly the specifications and quality standards as provided by the company. Warranty shall survive any inspections, delivery of the goods to the company.
16. **Fitment Guarantee.**
    a. You shall have to provide a certificate that the products you supplied, shall fit properly. A certificate to this respect is to be given at the time of delivery of materials.
17. **Installation & Commissioning.**
    a. Supervisory service should be given by you Free of cost for installation and commissioning of the material supplied.
18. **Technical Support & Service.**
    a. In addition to normal after sales service, the supplier will render technical support and service to ensure proper usage, maintenance and satisfactory performance of the items supplied.
19. **Liquidated Damages Clause.**
    a. Time is the essence of this contract and the materials must be delivered by the supplier according to the delivery schedule indicated in the P.O. In case of any change, the supplier should inform Glosent in advance and obtain our approval to the revised delivery schedule. Should the supplier fail to deliver the material or part thereof as per the delivery schedule, or any extension thereof, Glosent shall be entitled to the options - either to recover from the supplier, as penalty, a sum equivalent to ½% (half percent) per week for first four weeks and 1% per week thereafter for such delay or part thereof subject to a maximum of 5% of the contract price of the item delayed, or terminate the contract in respect of the balance supply so delayed and purchase materials elsewhere at the risk and cost of the defaulting supplier.
20. **Submission of Bills.**
    a. For claiming payment bills be submitted to the consignee consisting of the following documents,
       i. Challan Cum Tax Invoice.
       ii. Test Certificate.
       iii. Consignment Note/RR/LR/AWB. (if applicable)
       iv. Guarantee / Warranty Certificate. (if applicable)
       v. Pre-dispatch inspection reports, (if applicable)
       vi. Any other document, (if required as per the contract)
21. **Force Majeure.**
    a. In the event of stoppage of company's production due to strike or lockout or any Act-of-Nature or God or any other unforeseen circumstances, the company reserves the right to cancel or modify the purchase order without liability for any compensation or claim of any description.
22. **Confidentiality.**
    a. All drawings, tools and samples provided by Glosent to supplier for executing this order shall be the company's exclusive property and shall be returned to Company immediately on completion of this order. All tools will be maintained by supplier/vendor and in the event of damage or loss Supplier shall make good the same. Under no circumstances you shall disclose to third party (ies) the information contained in the company's drawings/ specifications without prior consent in writing.

Vendor's Acceptance	
This is to certify that I fully read the terms and conditions of this Purchase Order stipulated at the back of this document. Having fully read and understood the complete requirements of this Purchase Order, I hereby commit myself and my company to serve its Date requirements and fully comply with its terms and conditions. I also further certify that I am authorized by my company to accept this Purchase Order by: in its behalf.	Vendor's Sign & Stamp